

UNITED STATES DISTRICT COURT  
EASTERN DISTRICT OF NEW YORK

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JAMAL GREEN,

Plaintiff,

-against-

Case No.:

JOSE VASQUEZMIRANDA, Tax Reg. No.  
942655, a Police Officer of the  
CITY OF NEW YORK, THOMAS REO, Tax  
Reg. No. Unknown, a Police Officer  
Of the CITY OF NEW YORK, Michael Carleo,  
Tax Reg. No. Unknown, a Police Officer CIVIL COMPLAINT  
Of the CITY OF NEW YORK, Michael  
Koledin, Tax Reg. No. Unknown, a  
Police Officer of the City of New  
York, THE CITY OF NEW YORK AND  
THE NEW YORK CITY POLICE  
DEPARTMENT,

Defendants.

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NATURE OF LAWSUIT

This is a claim for money damages against the above-named defendants alleging violations of plaintiff's constitutional rights under Title 42 United States Code Section 1983 (hereinafter 42 USC § 1983) as against Police officer Jose Vasquezmiranda and Police Officers Thomas Reo, Michael Carleo and Michael Koledin respectively, said claims encompassing violations of plaintiff's federal constitutional rights to be free from stop and frisk without reasonable suspicion, to be free from search and

seizure without probable cause, to be free from detention and arrest and prosecution without probable cause and to be free from infliction of excessive use of force while in police custody. The police officer defendants are alleged to have been engaged in state action within the meaning of 42 USC § 1983.

The lawsuit also asserts claims under New York State Law pursuant to the supplemental jurisdiction of this court, alleging false arrest, malicious prosecution and negligence as against the named police officer defendants and against the City of New York and New York City Police Department with respect to unintentional torts.

#### JURISDICTION

The jurisdiction of this court is invoked pursuant to 28 USC § 1331 as a claim or controversy arising under the laws of the United States and pursuant to 28 USC § 1367 with respect to supplemental jurisdiction over the state law claims asserted herein.

#### VENUE

Venue is laid in the Eastern District of New York because plaintiff resides in Queens County within the Eastern District of New York and the acts complained of herein all took place in Queens County within the Eastern District of New York.

PARTIES

The plaintiff in this action is Jamal Green. Mr. Green is a natural person and a citizen of the United States. He resides at 194-33 112 Avenue, St. Albans, New York 11412 in the County of Queens, City and State of New York and within the Eastern District of New York.

The defendant Jose Vasquezmiranda is a Police Officer of the New York City Police Department and is sued individually and in his capacity as a Police Officer of the New York City Police Department.

The defendant Thomas Reo is a Police Officer of the New York City Police Department and is sued individually and in his capacity as a Police Officer of the New York City Police Department.

The defendant Michael Carleo is a Police Officer of the New York City Police Department and is sued individually and in his capacity as a Police Officer of the New York City Police Department.

The defendant, Michael Koledin is or was at all times here relevant a Police Officer of the New York City Police Department and is sued individually and in his capacity as a Police Officer of the New York City Police Department.

The defendant, the New York City Police Department is an executive department of the defendant, The City of New

York, and, as such, is charged with the operation and control of police precincts throughout the City of New York and is charged with enforcement of state and local laws, the investigation of criminal complaints, the apprehension of suspected criminals and for that purpose employs trained police officers and their supervisors.

The defendant, The City of New York is a municipal corporation duly organized under the laws of the State of New York and it has, as one of its executive departments and governmental sub-divisions, the New York City Police Department.

#### STATEMENT OF FACTS

FIRST: The plaintiff, Jamal Green is 31 years old and, at all times here relevant, has resided at 194-33 112<sup>th</sup> Avenue, St. Albans, New York 11412 in the County of Queens.

SECOND: That on 11/26/13 at approximately between 1:40 p.m. and 1:55 p.m. near the intersection of 120<sup>th</sup> Avenue and 195<sup>th</sup> Street in the County of Queens, plaintiff was lawfully operating a motor vehicle registered to his brother, Arthur Blamoville.

THIRD: That at that time, date and place the vehicle being operated by plaintiff was stopped by plainclothes police in an unmarked car for allegedly failing to make a turn signal.

FOURTH: That the police officers who stopped the vehicle being operated by plaintiff were each police officers of the New York City Police Department who were at that time employed by the City of New York.

FIFTH: That plaintiff, after his vehicle was stopped, was ordered by the police officers to exit the vehicle. Plaintiff, who gave his license and registration as requested, asked why he had been stopped on the grounds he had done nothing wrong. He was removed from the vehicle, placed in handcuffs and made to stand at the rear of his vehicle and was placed in handcuffs.

SIXTH: That the defendant police officer then entered plaintiff's vehicle. He told police that they could not search his vehicle but the defendant police officers nevertheless searched his vehicle. Plaintiff did not consent to the search.

SEVENTH: That the defendant police officers, during a search of the vehicle, found a container which they claimed contained a "noxious material."

EIGHTH: That on 11/26/13 plaintiff was taken into custody by the defendant police officers, placed under arrest and charged under the New York State Penal Law with the crimes of Obstructing Governmental Administration in the Second Degree (P.L. 195.05), Unlawfully Possessing

Noxious Material (P.L. 270.05(2) and with violation of the New York City Administrative Code Section 10-131-E, Sale or Possession of Tear Gas and with violation of New York State Vehicle & Traffic Law Section 1163-C, Turning Movements and Required Signals.

NINTH: That plaintiff, while on the street by his car, complained to the defendant police officers present that the handcuffs placed on him were so tight that he was in pain and asked that his cuffs be loosened. The defendant police officers refused.

TENTH: That plaintiff kept inquiring as to why he was being arrested and was told that he was being arrested for "assaulting an officer." In fact, he was never so charged nor did he assault an officer.

ELEVENTH: That plaintiff was transported to the 113<sup>th</sup> Precinct in Queens County where he was placed in a cell and confined as a prisoner in a cell with other arrested persons.

TWELFTH: That after being held in a cell at the 113<sup>th</sup> Precinct where he went through the charging and booking photography process, plaintiff was transported in handcuffs to Central Booking Queens where he underwent the formal booking process of being fingerprinted, photographed and

placed in a cell to await arraignment before a judge of the Criminal Court of the City of New York in Queens County.

THIRTEENTH: That the plaintiff was held in various cells at the Central Booking Queens facility in the courthouse at 125-01 Queens Boulevard in Kew Gardens, Queens until his file was deemed "court ready" and he was then arraigned before a Judge of the Criminal Court of the City of New York.

FOURTEENTH: That on 11/27/13 plaintiff was arraigned in the Criminal Court of the City of New York on charges of violating Penal Law Section 190.05, Obstructing Governmental Administration, Penal Law Section 270.05(2) Unlawfully Possessing Noxious Material, New York City Administrative Code Section 10-131-E, Sale or Possession of Tear Gas and Vehicle & Traffic Law Section 1163-C, Turning Movements and Required Signals. He was released on his own recognizance and directed to return to court on an adjourned date. He had spent a little more than 24 hours in custody.

FIFTEENTH: That the criminal case against plaintiff was prosecuted by the District Attorney of Queens County on complaint signed and sworn to by defendant Police Officer Jose Vasquezmiranda. The Docket Number assigned to the Criminal Court case was 2013QN065768.

SIXTEENTH: That this matter appeared two subsequent times on the calendar of the Criminal Court of the City of New York. Each appearance required the attendance of plaintiff as defendant in the criminal action.

SEVENTEENTH: That on 3/3/14 all charges against plaintiff under Docket Number 2013QN065768 were dismissed and the docket was sealed pursuant to Section 160.50 of the New York State Criminal Procedure Law.

EIGHTEENTH: That during his arrest on 11/26/13 as set forth supra, plaintiff experienced extreme pain and eventually numbness in his hands and fingers as set forth above.

NINETEENTH: That after his release from custody by the court on 11/27/13, plaintiff sought and received medical attention for his hands from Mildred Solano, M.D. and Ricardo Calderone, RPT both of Primary Health Care Plus in Franklin Square, New York and from Sam Yee, M.D. of the same facility. He was also treated by other health care providers at the same facility. He underwent a course of physical therapy for his hands, had diagnostic tests and was prescribed painkilling medication.

#### PROCEDURAL HISTORY

TWENTIETH: Plaintiff's arrest took place on 11/26/13. The state claim for false arrest therefore accrued on that

date. A Notice of Claim against the City of New York was required to have been filed within 90 days thereof pursuant to Section 50(g) of the General Municipal Law. Such notice was not filed.

TWENTY-FIRST: The dismissal of plaintiff's criminal case took place on 3/3/14. The state claim for malicious prosecution would have accrued on that date. A Notice of Claim was required to have been filed within 90 days thereof pursuant to Section 50(g) of the General Municipal Law.

TWENTY-SECOND: Plaintiff's state claim for negligence would also have accrued on 11/26/13, the date of arrest. A Notice of Claim with respect to that claim was required to have been filed within 90 days of that date pursuant to Section 50(h) of the General Municipal Law.

TWENTY-THIRD: That by Order to Show Cause dated on or about 4/15/14 plaintiff, by counsel, sought permission of Supreme Court, Queens County, to file a Late Notice of Claim pursuant to Section 50(e) of the General Municipal Law. The Index Number is 7047/14. The City of New York, through Corporation Counsel of the City of New York, opposed the application.

TWENTY-FOURTH: That by Decision and Order dated August 1, 2014 of Hon. Phyllis Orlikoff Flug, Justice of the

Supreme Court, plaintiff was granted permission to file a Late Notice of Claim provided said notice was served on the Comptroller of the City of New York by September 5, 2014.

TWENTY-FIFTH: That on August 14, 2014 plaintiff served the Notices of Claim with respect to the state claim on the Comptroller of the City of New York.

TWENTY-SIXTH: That this action is filed before the expiration of one year with respect to the causes of action for false arrest and malicious prosecution, and within one year and 90 days for the state claim of negligence. The requirements for this court to exercise its supplemental jurisdiction over state causes of action have thus been met. None of the state claims have been adjusted or settled.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST  
DEFENDANT POLICE OFFICER JOSE VASQUEZMIRANDA, POLICE  
OFFICER THOMAS REO, POLICE OFFICER MICHAEL CARLEO, AND  
POLICE OFFICER MICHAEL KOLEDIN-VIOLATION OF TITLE 42 UNITED  
STATES CODE § 1983-UNLAWFUL STOP, SEARCH AND SEIZURE

TWENTY-SEVENTH: That at all times here relevant, plaintiff, Jamal Green was a citizen of the United States, was over the age of 18 years and was a resident of Queens County in the City and State of New York and within the Eastern District.

TWENTY-EIGHTH: That on 11/26/13 and at all times here relevant, defendant Jose Vasquezmiranda was a police officer employed by the defendant City of New York as a member of the defendant New York City Police Department and was assigned to the 113<sup>th</sup> Precinct in the County of Queens.

TWENTY-NINTH: That on 11/26/13 plaintiff, Jamal Green was lawfully operating his brother's motor vehicle as aforesaid near the intersection of 120<sup>th</sup> Avenue and 195<sup>th</sup> Street in Queens County when an unmarked motor vehicle passed him and proceeded down the street ahead of him.

THIRTIETH: That the same unmarked vehicle then stopped, put on its backup lights and backed down the street in plaintiff's direction and came to a stop, blocking plaintiff's vehicle. At that point, several men in plainclothes, including defendant Vasquezmiranda, demanded to see plaintiff's license and registration.

THIRTY-ONE: That plaintiff, who was now told that the individuals were police officers, demanded to know why he had been stopped and told the police officers he had done nothing wrong.

THIRTY-TWO: That plaintiff was ordered from the car by defendants Vazquezmiranda, Thomas Reo, Michael Carleo and Michael Koledin and made to stand at the rear of his vehicle and was placed in handcuffs.

THIRTY-THREE: That while handcuffed and standing in the street at the rear of his vehicle, defendants, Vasquezmiranda, Reo, Carleo and Koledin proceeded to search plaintiff's vehicle.

THIRTY-FOUR: That while the vehicle was being searched, plaintiff called out to the police officers and told them he did not consent to a search of the vehicle and told the police officers to stop the search of the vehicle but the officers refused.

THIRTY-FIVE: that the defendant police officers continued with the search of the vehicle and found what they alleged to be a small can of pepper spray.

THIRTY-SIX: That the defendant police officers told plaintiff that he had failed to make a proper turn signal and that is why they backed their vehicle up the block and and stopped him.

THIRTY-SEVEN: That the stop of plaintiff's vehicle by police was not founded on reasonable suspicion since defendant had done nothing to suggest that criminal activity was afoot and plaintiff's actions supplied no articulable facts which would warrant a reasonable police officer to conclude that plaintiff was engaged in or about to engage in criminal activity.

THIRTY-EIGHT: That the claimed reason for stop of plaintiff's vehicle was a pretext for the defendant police officers to stop plaintiff's vehicle. Plaintiff specifically denies that he failed to make a proper turn signal.

THIRY-NINE: That upon stopping plaintiff's vehicle, plaintiff was ordered from his vehicle without reasonable suspicion as aforesaid and placed in handcuffs without either reasonable suspicion or probable cause to believe that plaintiff had committed or was committing a crime. This constituted an unlawful seizure of plaintiff's person.

FORTY: that defendants Vasquezmiranda, Reo, Carleo and Koledin then conducted an unlawful search of plaintiff's vehicle. The search was unlawful because the defendant police officers knew they had no information to believe plaintiff was engaged in criminal activity, had no basis to believe that evidence of a crime would be uncovered, there were no exigent circumstances and plaintiff specifically did not consent to the search of his vehicle.

FORTY-ONE: That defendants Vasquezmiranda, Reo, Carleo and Koledin were at all times acting in their official capacities as police officers of the New York City Police Department.

FORTY-TWO: That defendants Vasquezmiranda, Reo, Carleo and Koledin were at all times acting under color of state law and were engaged in state action.

FORTY-THREE: That actions of all defendants as aforesaid violated plaintiff's rights under the Fourth and Fifth Amendments to the United States Constitution as codified under Title 42 United States Code § 1983 to be free from unlawful stop, search and seizure of his property and his person.

Wherefore, plaintiff demands judgment against defendants Vasquezmiranda, Reo, Carleo and Koledin under the first Cause of Action under Title 42 § 1983 United States Code in the sum of SEVEN HUNDRED FIFTY THOUSAND DOLLARS (\$750,000.00) together with interest, costs and attorney's fees.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST  
DEFENDANT POLICE OFFICERS JOSE VASQUEZMIRANDA,  
THOMAS REO, MICHAEL CARLEO AND MICHAEL KOLEDIN-  
VIOLATION OF TITLE 42 UNITED STATES CODE § 1983-  
FALSE ARREST

FORTY-FOURTH: Plaintiff repeats, realleges and reiterates each and every allegation set forth in plaintiff's First through Forty-Third as if fully set forth herein.

FORTY-FIFTH: That on 11/26/13, following the unlawful stop, search and seizure as aforesaid, plaintiff Jamal Green was placed under arrest by defendant Jose Vasquezmiranda acting together with defendant police officers Reo, Carleo and Koledin and was charged with the crimes of Obstructing Governmental Administration in the Second Degree (P.L. 195.05), Unlawfully Possessing Noxious Material (P.L. 270.05(2) and with violation of the New York City Administrative Code Section 10-131-E, Sale or Possession of Tear Gas and with violation of New York State Vehicle & Traffic Law Section 1163-C, Turning Movements and Required Signals.

FORTY-SIXTH: That such arrest was a false arrest in that there was no probable cause for any of the charges, no crime had been committed in the presence of defendants, no facts existed to support such charges and defendants knew that no such facts existed.

FORTY-SEVENTH: That the arrest of plaintiff without probable cause constituted a violation of the Fourth and Fourteenth Amendments to the United States Constitution which requires arrest based only upon probable cause and was also in violation of Title 42, United States Code § 1983.

FORTY-EIGHTH: That as a result of this false arrest as aforesaid, plaintiff was held in custody, thrown forcibly on the trunk of his care, placed in excessively tight handcuffs, put in a precinct holding cell, transported as a prisoner to Central Booking Queens, placed in a cell again until released by a judge approximately 24 hours after his arrest and compelled to make required court appearances until dismissal of his case on 3/3/14.

FORTY-NINTH: That on 11/26/13 and at all times here relevant, defendants Vasquezmiranda, Reo, Carleo and Koledin were each police officers of the New York City Police Department acting in their official capacities.

FIFTIETH: That on 11/26/13 and at all times here relevant, defendants Vasquezmiranda, Reo, Carleo and Koledin were each acting under color of state law and were engaged in state action.

FIFTY-FIRST: That the false arrest and injuries sustained by the plaintiff as aforesaid constituted a deprivation of civil and constitutional rights, privileges and immunities guaranteed to plaintiff under the Fourth and Fourteenth Amendments, loss of liberty interest and physical and emotional injuries.

Wherefore, plaintiff demands judgment against defendants under the Second Cause of Action in the sum of

SEVEN HUNDRED AND FIFTY THOUSAND DOLLARS (\$750,000.00)

together with interest, costs and attorneys fees.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST  
DEFENDANT POLICE OFFICERS JOSE VASQUEZMIRANDA,  
THOMAS REO, MICHAEL CARLEO AND MICHAEL KOLEDIN-  
VIOLATIONS OF TITLE 42 UNITED STATES CODE § 1983-  
USE OF EXCESSIVE  
FORCE.

FIFTY-SECOND: Plaintiff repeats, realleges and reiterates each and every allegation set forth in paragraphs First through Fifty-First as if fully set forth herein.

FIFTY-THIRD: That on 11/26/13, plaintiff's person was seized and he was charged with crimes as set forth at length supra.

FIFTY-FOURTH: That when plaintiff was placed in handcuffs by defendants Vasquezmiranda, Reo, Carleo and Koledin as aforesaid while standing in the street as defendants searched his vehicle without consent, the cuffs were applied to his hands so tightly that he felt excruciating pain in his hands and wrists.

FIFTY-FIFTH: That plaintiff pleaded with the defendant police officers to loosen his handcuffs due to the pain he was experiencing but they refused to do so.

FIFTY-SIXTH: That the handcuffs were eventually loosened only after a long period of time and repeated requests to the police officer defendants.

FIFTY-SEVENTH: That as a result of the excessively and unnecessarily tight handcuffing of plaintiff's hands by defendants Vasquezmiranda, Reo, Carleo and Koledin, plaintiff sustained painful injuries requiring medical treatment and physical therapy. Plaintiff continues to experience pain and numbness in his hands.

FIFTY-EIGHTH: That the injuries sustained by plaintiff due to the excessive force used by defendants Vasquezmiranda, Reo, Carleo and Koledin include pain and numbness with triggerpoints bilaterally with restricted range of motion of the hands, fingers and wrists with lesion of the left radial nerve causing decreased sensation in the left hand and numbness and tingling in the left hand with pain in the left hand, left arm and left elbow.

FIFTY-NINTH: That plaintiff underwent months of physical therapy to restore function but still has residuals of these injuries. Plaintiff was unable to resume work as a landscaper in spring of 2014 due to his hand injuries.

SIXTIETH: That the foregoing injuries were caused by the use of excessive force by defendants, Vasquezmiranda,

Reo, Carleo and Koledin in violation of Title 42 United States Code § 1983.

SIXTY-FIRST: That the injuries sustained by plaintiff were solely as a result of defendant's unconstitutional use of excessive force in violation of the Eighth and Fourteenth Amendments to the United States Constitution and further constitute a deprivation of rights,, privilege and immunities guaranteed to plaintiff under the Fourth and Fourteenth Amendments in causing plaintiff severe and painful physical and emotional injuries.

SIXTY-SECOND: That on 11/26/13 and at all times here relevant, defendants Vasquezmiranda, Reo, Carleo and Koledin were each acting in their capacities as police officers of the New York City Police Department, each was engaged in state action and each was acting under color of state law.

Wherefore, plaintiff demands judgment against defendants under the Third Cause of Action in the sum of SEVEN HUNDRED FIFTY THOUSAND DOLLARS (\$750,000.00) together with interest, costs and attorneys fees.

**AS AND FOR A FOURTH CAUSE OF ACTION AGAINST**  
**THE CITY OF NEW YORK---NEGLIGENCE**

SIXTY-THIRD: Plaintiff repeats, realleges and reiterates each and every allegation set forth in

Paragraphs First through Sixty-Second as it fully set forth herein.

SIXTY-FOURTH: That on November 26, 2013 and at all times here relevant Jose Vasquezmiranda, Thomas Reo, Michael Carleo and Michael Koledin were respectively police officers on duty acting in the scope of their employment by defendant The City of New York and assigned to the 113<sup>th</sup> Precinct.

SIXTY-FIFTH: That the actions of defendant's police officers were careless and negligent and resulted in harm, including but not limited to physical and emotional injuries to plaintiff.

SIXTY-SIXTH: That, upon information and belief defendants Vasquezmiranda, Reo, Carleo and Koledin were each trained in the proper use and applications of handcuffs to persons being arrested, placed in custody or otherwise detained.

SIXTY-SEVENTH: That defendants Vasquesmiranda, Reo, Carleo and Koledin, were all police officers employed by defendant The City of New York, and as such they were responsible for the safety, health and physical well-being of persons they place in their custody.

SIXTY-EIGHTH: That police officers in the employ of defendant The New York City Police Department are obligated

to use reasonable care with respect to the safety, health and well-being of those they place in their custody.

SIXTY-NINTH: That it is reasonably foreseeable that if handcuffs are applied too tightly, that pain and physical injury can occur to the person handcuffed.

SEVENTIETH: That on 11/26/13 plaintiff was placed in handcuffs by members of the New York City Police Department as aforesaid without due care and caution, resulting in physical injury to plaintiff.

SEVENTY-FIRST: That on 11/26/13 defendant police officers employed by defendant City of New York, despite notice from plaintiff, waited an unreasonably long time to loosen plaintiff's handcuffs, thus restraining plaintiff's hands, wrists and arms in an unreasonably tight and painful position, resulting in personal injuries to plaintiff.

SEVENTY-SECOND: That on 11/26/13 the actions of defendants created a foreseeable risk of physical injury to plaintiff and were a significant producing cause of those injuries.

SEVENTY-THIRD: That defendant City of New York is liable under the doctrine of respondeat superior for the negligence of its agents, servants and employees as aforesaid.

SEVENTY-FOURTH: That on 11/26/13 the injuries sustained by plaintiff as a result of defendant's negligence without any negligence on the part of plaintiff contributing thereto included pain and numbness in both hands, pain in wrists, with his right hand still painful and with numbness to his left hand requiring a course of medical treatment and physical therapy which is ongoing.

Wherefore, plaintiff demands judgment against defendant City of New York in an amount to be determined at trial and in excess of the jurisdictional amount of any lower New York court together with interest and costs.

**AS AND FOR A FIFTH CAUSE OF ACTION-FALSE ARREST**

SEVENTY-FIFTH: Plaintiff repeats, realleges and reiterates each and every allegation set forth in paragraphs First through Seventy-Fourth as if fully set forth herein.

SEVENTY-SIXTH: For all of the reasons set forth supra the arrest of plaintiff was a false arrest in that it was made by defendants Vasquezmiranda, Reo, Carleo and Koledin knowing that there was no probable cause for the arrest.

SEVENTY-SEVENTH: That on 11/26/13, plaintiff was informed by defendant officers Vasquesmiranda, Reo, Carleo and Koledin that the only reason he was being arrested was

because he had threatened to complain about his arrest and was told that they "were covering their asses" because he had threatened to make a complaint.

SEVENTY-EIGHTH: That the defendant police officers knew that they had no probable cause to arrest plaintiff.

SEVENTY-NINTH: That as a result of his false arrest plaintiff was deprived of liberty, charged with crimes and sustained physical injury as aforesaid.

EIGHTIETH: That the claim for false arrest is timely made as set forth in the procedural history of this matter in paragraphs Seventy-Sixth through Seventy-Ninth supra.

Wherefore, plaintiff demands judgment against defendants in an amount to be determined at trial and in excess of the jurisdictional amount of any lower New York court together with interest and costs.

**AS AND FOR A SIXTH CAUSE OF ACTION-MALICIOUS  
PROSECUTION**

EIGHTY-FIRST: Plaintiff repeats, realleges and reiterates each and every allegation set forth in paragraphs First through Eightieth as if fully set forth herein.

EIGHTY-SECOND: That on 11/26/13 plaintiff was arrested and charged with Obstructing Governmental Administration in the Second Degree (P.L. 195.05), Unlawfully Possessing

Noxious Material (P.L. 270.05(2)) and with violation of the New York City Administrative Code Section 10-131-E, Sale or Possession of Tear Gas and with violation of New York State Vehicle & Traffic Law Section 1163-C, Turning Movements and Required Signals.

EIGHTY-THIRD: That plaintiff was prosecuted on these charges in the Criminal Court of the City of New York, County of Queens under Docket No. 2013QN065768.

EIGHTY-FOURTH: That the accusatory instrument filed against plaintiff to support this prosecution was signed by defendant Vasquezmiranda with knowledge that the allegations contained therein were false and were not based on a good faith belief that the charges were true.

EIGHTY-FIFTH: That the prosecution was initiated and pursued with malice, knowing the underlying facts set forth in the complaint by defendant Vasquezmiranda were untrue.

EIGHTY-SIXTH: That plaintiff was injured, arraigned before a judge on charges falsely brought and was compelled to make court appearances to defend himself.

EIGHTY-SEVENTH: That on 3/3/14, all charges against plaintiff were dismissed and the docket was sealed.

Wherefore, plaintiff demands judgment against defendants Vasquezmiranda, Reo, Carleo and Koledin in an amount to be determined at trial and in excess of the

jurisdictional amount of any lower New York State court together with interest and costs.

Wherefore, plaintiff demands total judgment as follows:

On the FIRST CAUSE OF ACTION in the amount of SEVEN HUNDRED AND FIFTY THOUSAND DOLLARS (\$750,000.00) together with interest and costs and attorney's fees.

On the SECOND CAUSE OF ACTION in the amount of SEVEN HUNDRED AND FIFTY THOUSAND DOLLARS (\$750,000.00) together with interest and costs and attorney's fees.

On the THIRD CAUSE OF ACTION in the amount of SEVEN HUNDRED AND FIFTY THOUSAND DOLLARS (\$750,000.00) together with interest and costs and attorney's fees.

On the FOURTH CAUSE OF ACTION in an amount to be determined at trial and in excess of the jurisdictional amount of any lower New York State court together with interest and costs

On the FIFTH CAUSE OF ACTION in an amount to be determined at trial and in excess of the jurisdictional amount of any lower New York State court together with interest and costs.

On the SIXTH CAUSE OF ACTION in an amount to be determined at trial and in excess of the jurisdictional

amount of any lower New York State court together with interest and costs.

JURY DEMAND

Plaintiff hereby demands a trial by jury of all issues raised in Plaintiff's complaint.

Dated: Kew Gardens, New York

November 19, 2014

Yours etc.,

  
JAMES P. HARDING, ESQ.  
(jph1804)  
Harding & Moore, Esqs.  
Attorneys for Plaintiff  
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TO: Zachary W. Carter  
Corporation Counsel  
The City of New York  
100 Church Street  
New York, New York 10007

New York City Police Department  
1 Police Plaza  
New York, New York 10007

Jose Vasquezmiranda  
Police Officer Assigned to 113<sup>th</sup> Precinct  
167-02 Baisley Boulevard  
Jamaica, New York 11434  
c/o 1 Police Plaza  
New York, New York 10007

Thomas Reo  
Police Officer Assigned to 113<sup>th</sup> Precinct  
167-02 Baisley Boulevard  
Jamaica, New York 11434  
c/o 1 Police Plaza  
New York, New York 10007

Michael Carleo  
Police Officer Assigned to 113<sup>th</sup> Precinct  
167-02 Baisley Boulevard  
Jamaica, New York 11434  
c/o 1 Police Plaza  
New York, New York 10007

Michael Koledin  
Police Officer Assigned to 113<sup>th</sup> Precinct  
167-02 Baisley Boulevard  
Jamaica, New York 11434  
c/o 1 Police Plaza  
New York, New York 10007